

Court No. - 6

Case :- WRIT - C No. - 27718 of 2019

Petitioner :- Executive Engineer Electricity Distribution

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Dharmendra Srivastava

Counsel for Respondent :- C.S.C., Shreeprakash Singh

Hon'ble Yashwant Varma, J.

Heard learned counsel for the petitioner and Sri Shreeprakash Singh who appears for the respondent No. 3.

This petition impugns a award rendered by the Permanent Lok Adalat awarding a sum of Rs.1,70,000/- towards loss caused on account of death and injury caused to cattle and Rs. 2,000/- towards cost of the case. The award is challenged on the ground that the provisions of the **1987 Act** would have no application and that the claim as laid against the Electricity Distribution Division would not lie. The submission as addressed is no longer *res integra* and stands concluded in terms of the following observations as made by a learned Judge of the Court in **Divisional Engineer, Electricity Distribution Division-I Vs. Raman Singh And Another, 2018(6)All WC 5693:**

"11. Section 22-D of the Act, 1987 further provides that the procedure applicable to the Code of Civil Procedure, 1908 and the statutory provisions of the Indian Evidence Act, 1872 are not applicable in the decision on a dispute on merits under the Act rather the Permanent Lok Adalat shall be guided by the principles of natural justice, objectivity, fairplay and equity and other principles of justice. This alternative mechanism is intended to provide an affordable, speedy and efficient mechanism to secure justice. The Act thus provides safeguard that in the complaint involving complicated issues regarding recording of evidence of experts, summoning of witnesses etc. the same shall not be entertained by the Permanent Lok Adalat and the right of the complainant to approach the civil court for necessary relief would, therefore, be available. The Act thus supplements the jurisdiction of the civil court in a dispute which does not relate to any criminal offence.

12. In the light of the said legal position, considering the effect of the first proviso to sub-section (1) of Section 22-C of the Act, 1987, it is held that the Permanent Lok Adalats have jurisdiction to entertain all disputes of civil nature where the jurisdiction of the Civil court is not barred expressly or impliedly by the Statutory provisions.

13. In so far as the grievances of a consumer of electricity is concerned, the Electricity Act 2003 and Electricity Supply Code, 2005 are comprehensive codes to take care of all such nature of disputes. The jurisdiction of civil court in such matters is, therefore, taken away expressly by Section 145 of the Electricity Act 2003.

14. Whereas, in a case of claim put by a member of public for damages caused to him, for the fault of the electricity department, the matter would fall within the jurisdiction of the Permanent Lok Adalat, inasmuch as, "supply of power" by any establishment to the public is included within the meaning of "Public utility service" defined under Section 22-A of the Legal Service Authority Act, 1987. The claimant who belongs to the weaker section of society cannot be relegated to the tardy process of civil court for filing a civil suit. Such a direction would run contrary to the whole object of the Act, 1987."

In light of the settled legal position enunciated in that decision, the Court finds no ground to interfere with the award rendered. No other submission was addressed.

The writ petition consequently fails and is **dismissed**.

Order Date :- 22.8.2019

Arun K. Singh

(Yashwant Varma, J.)